

OFFICE OF THE SECRETARY

P.O. Box 942883

Sacramento, CA 95833-0001

JUN 28 2018

Honorable Helios J. Hernandez
Judge of the Superior Court
County of Riverside
4100 Main Street
Riverside, CA 92501



Re: Campos, Juan Marcelino
CDC No.: AN0064
Case No.: RIF1201498
Date of Sentence: November 30, 2012

Dear Honorable Helios J. Hernandez:

The purpose of this letter is to provide the court with authority to resentence Juan Marcelino Campos pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Campos was sentenced in 2012, and was convicted of section 245, subdivision (A)(1), Assault w/deadly. The trial court sentenced inmate Campos on November 30, 2012. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Campos's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Campos's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Becky Lynn Dugan, Riverside County Presiding Judge
Riverside District Attorney
Public Defender

Date _____ ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE
[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

Per _____

SUPERIOR COURT OF CALIFORNIA COUNTY OF: Riverside

PEOPLE OF THE STATE OF CALIFORNIA vs. _____ DOB: 04/26/1993

DEFENDANT: JUAN MARCELINO CAMPOS ✓

AKA: _____

CII#: A32621514

BOOKING #: 201207808

COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT

☐ NOT PRESENT

☐ AMENDED ABSTRACT

RIF1201498 -A

-B

-C

-D

FILED

SUPERIOR COURT OF CALIFORNIA COUNTY OF RIVERSIDE

DEC 03 2012

A. Nunez

DATE OF HEARING: 11/30/2012 DEPT. NO.: 63 JUDGE: Helios J. Hernandez

CLERK: J Martin REPORTER: D O'Leary PROBATION NO. OR PROBATION OFFICER: ☐ IMMEDIATE SENTENCING

COUNSEL FOR PEOPLE: Laura Ozols by Matt Murray COUNSEL FOR DEFENDANT: DPD-Greg Roach by Ryan Markson ☐ APPTD

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
(number of pages attached)

COUNT	CODE	SECTION NO	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO/DAY/YR)	CONVICTED BY			TERM (L/M/D)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (see to item 5)	ES4 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
3	PC	245(A)(1)	Assault w/deadly	12	10/22/12			X	L							2	

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
3	PC 186.22(b)(1)(B)	05	PC 12022.7(a)	03			8

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL

4. ☐ Defendant was sentenced per ☐ PC 667(b)-(i) or PC 1170.12 (two-strikes)

☐ PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed (Paper Commitment). Deft. ordered to report to local Parole Office upon release.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: _____

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME EXCLUDING COUNTY JAIL TERM: 10

PEOPLE OF THE STATE OF CALIFORNIA vs.
DEFENDANT:

JUAN MARCELINO CAMPOS

RIF1201498

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$ 240.00 per PC 1202.4(b) forthwith per PC 2085.5; \$ 240.00 per PC 1202.45 suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked.
Case B: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45 suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked.
Case C: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45 suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked.
Case D: \$ _____ per PC 1202.4(b) forthwith per PC 2085.5; \$ _____ per PC 1202.45 suspended unless parole is revoked
\$ _____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ _____ ☒ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
Case B: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case C: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
Case D: \$ _____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim names(s), if known, and amount breakdown in item 11, below ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ _____ per PC 1202.5, \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case B: \$ _____ per PC 1202.5, \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case C: \$ _____ per PC 1202.5, \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense
Case D: \$ _____ per PC 1202.5, \$ _____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ _____ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$ 40.00 per PC 1465.8 e. Criminal Conviction Assessment: \$ 30.00 per GC 70373

10. TESTING a. ☐ Compliance with PC 296 verified b. ☐ AIDS pursuant to PC 1202.1 c. ☐ other (specify):

11. Other orders (specify):

Pay booking fees of \$450.34; Payable to Division of Adult Institutions (GC 29550)

12. IMMEDIATE SENTENCING:

☐ Probation to prepare and submit post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: Hispanic

13. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing
b. ☐ at resentencing per decision on appeal
c. ☐ after revocation of probation
d. ☐ at resentencing per recall of commitment (PC 1170(d).)
e. ☐ Other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	324	282	42 ☒ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentenced Pronounced:		Time Served in State Institution:	
11/30/12		☐ DMH ☐ CDCR ☐ CRC	

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.

☐ other (specify):

I hereby certify the foregoing to be a correct abstract of the judgment made in this action

DEPUTY'S SIGNATURE

DATE

12/04/2012

SUPERIOR COURT OF CALIFORNIA, COUNTY OF RIVERSIDE
4100 Main Street
Riverside, CA 92501

People of the State of California
Vs.
JUAN MARCELINO CAMPOS

CASE NO. RIF1201498

MINUTE ORDER

=====

Sentencing
Date: 11/30/12 Time: 8:30 am Dept/Div: 63
=====

Charges: 1) 664/187(A) PC-F D, 2) 186.22(A) PC-F D, 3) 245(A)(1) PC-F C

VIOLATION DATE: 02/21/12

Honorable Judge Helios J. Hernandez Presiding.
Clerk: J Martin
Court Reporter: D O'Leary
People represented by Deputy District Attorney: Laura Ozols by
Matt Murray.
Defendant Represented By DPD-Greg Roach by Ryan Markson.
Defendant Present.
At 10:00, the following proceedings were held:
Defendant Waives Arraignment For pronouncement of judgment.
Defendant Requests Immediate Sentence.
No legal cause why sentence should not now be pronounced.
Probation is denied and a State Prison sentence is imposed as
follows:
As to Count(s) 03, the Court imposes the LOW term of 2 year(s) 0
month(s).
Principal Count Deemed to be Count 03.
As to Enhancement 1W-186.22(b)(1)(B)PC in Count 03, the Court
imposes 5 years.
Enhancement 1W-186.22(b)(1)(B)PC in Count 03 to run consecutive
to sentence imposed in Count 03.
As to Enhancement G1-12022.7(a)PC in Count 03, the Court
imposes 3 years.
Enhancement G1-12022.7(a)PC in Count 03 to run consecutive to
sentence imposed in Count 03.
Sentenced to State Prison for a total term of 10 years and 0
months.
Credit for time served of 282 days actual served plus 42 days
pursuant to 2933.1 PC for a total of 384 days. (Violent Felony)
Count(s) 01 02 dismissed in the interest of justice. (1385 PC)
Pay restitution fine in the amount of \$240.00 pursuant to
1202.4(B) PC. Div. Adult Institutions to collect obligation
pursuant to 2085.5 PC

12/04/12

Page: 2

Case Number : RIF1201498 People vs. JUAN CAMPOS

Pay additional Parole Revocation restitution fine in the amount of \$240.00 per 1202.4(B) PC. Per PC 1202.45 fine is suspended unless parole is revoked
Pay booking fees of \$450.34; Payable to Division of Adult Institutions (GC 29550)
Pay criminal conviction assessment fee of \$30.00 [\$30 per convicted charge], payable to Division of Adult Institutions (GC 70373)
Pay Court Operations Assessment \$40.00, \$40. per convicted charge. Div of Adult Inst. to collect & transfer to Trial Court Fund (PC 1465.8(a)(1))
Pay Victim Restitution [Victim] in amount determined by Probation [1202.4(f) PC]. Div of Adult Inst to collect obligation (2085.5 PC)
Any disputes as to amount to be resolved in court hearing. Enhanced Collection Division to forward findings to Div. of Adult Institutions.
Submit necessary thumb and palm prints, blood and saliva specimens to Division of Adult Institutions (PC 296(a)).
- - Custody Status/Information - -
Sentence to be served in State Prison. Sheriff to deliver defendant to: RECPT. CTR
Remains remanded to custody of Riverside Sheriff.
Minute Order printed to Robert Presley Detention Center.

Dispo

This must be in red to be a
"CERTIFIED COPY"

Each document to which this certificate is attached is certified to be a full, true and correct copy of the original on file and of record in my office.

Superior Court of California
County of Riverside

By [Signature]
DEPUTY

Dated: 12/04/12



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PAUL E. ZELLERBACH
District Attorney
County of Riverside
3960 Orange Street, First Floor
Riverside, California 92501
Telephone: (951) 955-5400
Arthur M. Chang
Supervising Deputy District Attorney
State Bar No. 143744

RECEIVED
SUPERIOR COURT
RIVERSIDE COUNTY
12 SEP 20 AM 8:29

Arraign: 9-21-12

URGENT

SUPERIOR COURT OF CALIFORNIA
COUNTY OF RIVERSIDE
(Riverside)

THE PEOPLE OF THE STATE OF CALIFORNIA,

Plaintiff,

v.

JUAN MARCELINO CAMPOS,

ESTEBAN RUIZ,

JOSEPH LOUIS GONZALES,

Defendants.

NO. RIF1201498

INFORMATION

FILED
SUPERIOR COURT OF CALIFORNIA
COUNTY OF RIVERSIDE

SEP 20 2012
E. Guzman

AGENCY#: ME120520077

COUNT 1

The District Attorney of the County of Riverside hereby accuses JUAN MARCELINO CAMPOS, ESTEBAN RUIZ, and JOSEPH LOUIS GONZALES of a violation of Penal Code section 664/187, subdivision (a), a felony, in that on or about February 21, 2012, in the County of Riverside, State of California, they did wilfully, unlawfully, and with malice aforethought attempt the willful, deliberate and premeditated murder of JOHN DOE, a human being.

The District Attorney of the County of Riverside further charges that the defendants JUAN MARCELINO CAMPOS, ESTEBAN RUIZ, and JOSEPH LOUIS GONZALES,

MIS
SEP 20 2012

1 committed the offense hereinabove set forth in 1 of the information for the benefit of, at the
2 direction of, and in association with a criminal street gang with the specific intent to promote,
3 further and assist in any criminal conduct by gang members, within the meaning of Penal Code
4 section 186.22, subdivision (b)(1)(A).

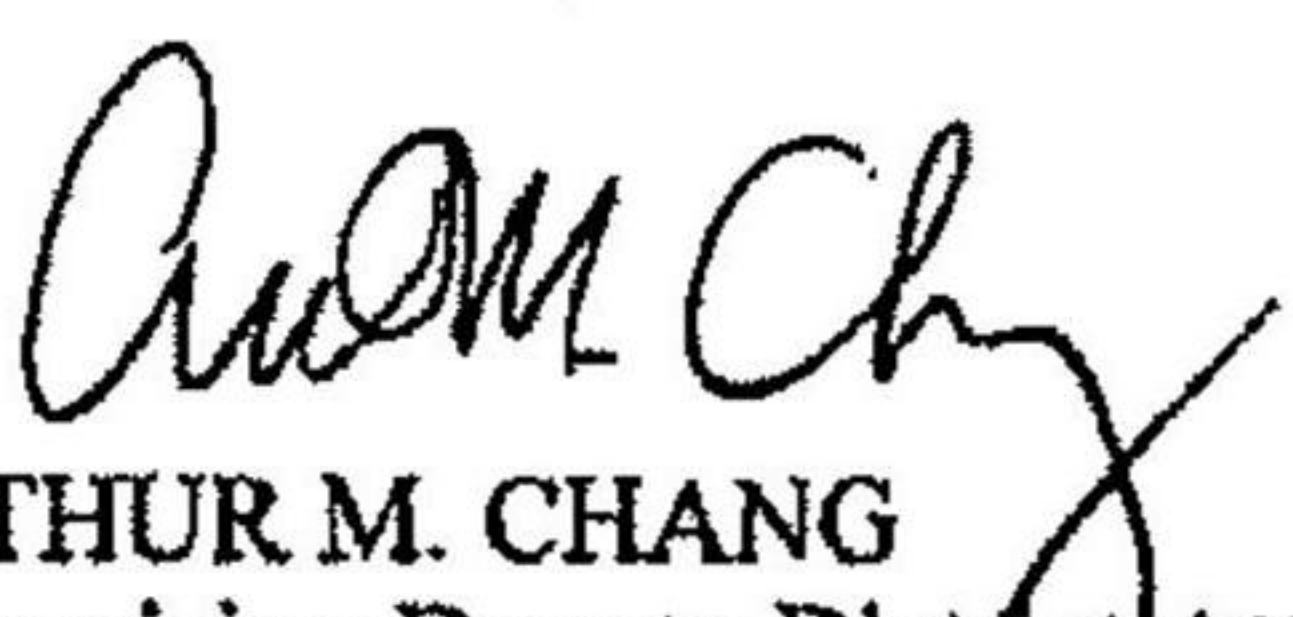
5 The District Attorney of the County of Riverside further charges that in the commission
6 of the offense hereinabove set forth in 1 of the information, the said defendants, JUAN
7 MARCELINO CAMPOS, ESTEBAN RUIZ, and JOSEPH LOUIS GONZALES, personally
8 inflicted great bodily injury upon JOHN DOE, not an accomplice to the above offense, within
9 the meaning of Penal Code sections 12022.7, subdivision (a) and 1192.7, subdivision (c),
10 subsection (8).

11 The District Attorney of the County of Riverside further charges that in the commission
12 and attempted commission of the offense hereinabove set forth in 1 of the information, the
13 defendants, JUAN MARCELINO CAMPOS, ESTEBAN RUIZ, and JOSEPH LOUIS
14 GONZALES, personally used a deadly and dangerous weapons, to wit, a CUTTING
15 INSTRUMENT, said use not being an element of the above offense, within the meaning of
16 Penal Code sections 12022, subdivision (b), subsection (1) and 1192.7, subdivision (c),
17 subsection (23).

18 COUNT 2

19 For a further and separate cause of action, being a different offense from but connected
20 in its commission with the charge set forth in count 1 hereof, the District Attorney of the
21 County of Riverside hereby accuses JUAN MARCELINO CAMPOS, ESTEBAN RUIZ, and
22 JOSEPH LOUIS GONZALES of a violation of section 186.22, subdivision (a), of the Penal
23 Code, a felony, in that on or about February 21, 2012, in the County of Riverside, State of
24 California, they did wilfully and unlawfully actively participate in a criminal street gang with
25 knowledge that its members engaged in and have engaged in a pattern of criminal gang activity,
26 and wilfully promoted, furthered and assisted in any felonious criminal conduct by members of
27 that gang, to wit: PERRES MARA VILLA.

28
29 PAUL E. ZELLERBACH
30 District Attorney

31
32 
33 ARTHUR M. CHANG
34 Supervising Deputy District Attorney

35 AMC:vb
36

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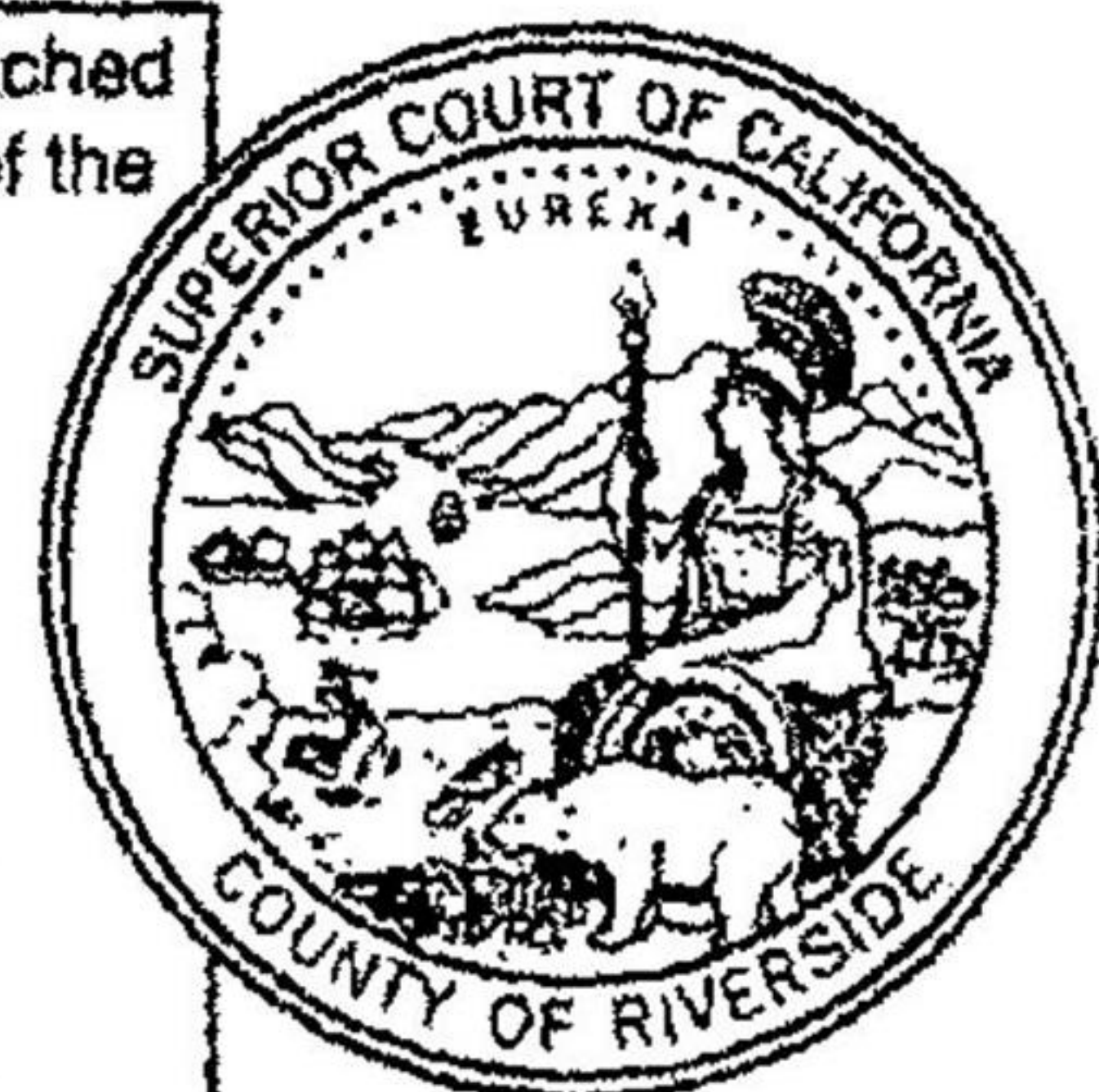
Each document to which this certificate is attached
is certified to be a full, true and correct copy of the
original on file and of record in my office.

Superior Court of California
County of Riverside

By _____

DEPUTY

Dated: _____



Certification must be in red to be a
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